

IN THE THIRTEENTH JUDICIAL CIRCUIT COURT
HILLSBOROUGH COUNTY, FLORIDA
CIVIL DIVISION

CHRISTOPHER HANSON, individually
and as attorney for himself and attorney/
next friend for his minor children,

HILLSBOROUGH COUNTY CCC
Filed: 01/13/2026 14:35:19

Plaintiffs/Petitioners,

v.

Case No.: 25-CA-10255

THIRTEENTH JUDICIAL CIRCUIT COURT,
CHIEF JUDGE CHRISTOPHER C. SABELLA,
JUDGE KELLY AYERS,
JUDGE MATTHEW FELIX,
COURT ADMINISTRATOR GINA JUSTICE,
MIKE MOORE, AND
CLERK OF COURT VICTOR CRIST,

Defendants/Respondents.

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ALTERNATIVE WRIT IN MANDAMUS

THIS CAUSE came before the Court on the Amended Verified Petition/Complaint for Writ of Mandamus, Declaratory Relief, and Attorney's Fees, filed by Plaintiffs/Petitioners on November 13, 2025 (the "Amended Complaint"). Pursuant to Rule 1.630, Fla. R. Civ. P., this Court has conducted a review of the Amended Complaint, as further set forth below, and has determined that certain parts of the Amended Complaint show a prima facie case for relief. As such, the Court directs the Defendants to respond to this writ as provided in Rule 1.140 and as further set forth in this writ.

As an initial matter, this Court finds that it is without jurisdiction pursuant to Fla. R. Gen. Prac. & Jud. Admin. 2.420(l) to determine certain matters raised in the Amended Complaint. That rule provides:

(l) Denial of Access Request for Administrative Records.

Expedited review of denials of access to administrative records of the judicial branch shall be provided through an action for mandamus or other appropriate relief, in the following manner:

(1) When a judge who has denied a request for access to records is the custodian, the action shall be filed in the court having appellate jurisdiction to review the decisions of the judge denying access. Upon order issued by the appellate court, the judge denying access to records shall file a sealed copy of the requested records with the appellate court.

(2) All other actions under this rule shall be filed in the circuit court of the circuit in which such denial of access occurs.

This rule relates to the procedure for review of a denial of access to “administrative records,” defined as “all other records made or received under court rule, law, or ordinance, or in connection with the transaction of official business by any judicial branch entity.” Fla. R. Gen. Prac. & Jud. Admin. 2.420(b)(1)(B). This category of records is contrasted with “court records,” defined as “the contents of the court file, including the progress docket and other similar records generated to document activity in a case, transcripts filed with the clerk, documentary exhibits in the custody of the clerk, and electronic records, videotapes, or stenographic tapes of depositions or other proceedings filed with the clerk, and electronic records, videotapes, or stenographic tapes of court proceedings.” Fla. R. Gen. Prac. & Jud. Admin. 2.420(b)(1)(A).

Pursuant to Rule 2.420(l), to the extent the Amended Complaint seeks review of a denial of an access request for administrative records by one or more of the individual judges who are alleged to be the custodian of such records, this Court lacks jurisdiction to review such claims.¹

¹ This would include any request for “administrative records” sought from Chief Judge Christopher C. Sabella, Judge Kelly Ayers, and Judge Matthew Felix.

In addition, the Court finds that there is a lack of a prima facie showing for an entitlement to declaratory relief under Chapter 86, Fla. Stat. The procedure to pursue a request for records from the judiciary is clearly set out in the Florida Rules of General Practice and Judicial Administration and the Amended Complaint fails to allege a legal basis for resort to an action for declaratory judgment.

Notwithstanding the above, as the Amended Complaint sets forth an, albeit inartful, prima facie case for relief, the Defendants² shall respond to the Amended Complaint within the time period and otherwise in accordance with Fla. R. Civ. P. 1.140. Upon filing their responses, or upon the expiration of the time for response, the parties shall set a Case Management Conference for the purpose of setting an evidentiary or other hearing to the extent same is required for the court to decide the merits of the case.

DONE AND ORDERED in chambers in Clearwater, Pinellas County, Florida, on this 13th day of January, 2026.

A handwritten signature in dark ink, appearing to read 'E. Frayman', is written over a horizontal line.

Evan G. Frayman³, Circuit Judge

cc: Counsel and all pro se parties

² All defendants as it relates to the request for “court records” in their custody, and only the non-judicial officer candidates as it relates it “administrative records.”

³ Sitting by special designation as a Judge of the 13th Judicial Circuit per Fla. S. Ct. Assignment Order 2026-40.